

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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TIMOTHY HARRIS,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
CATHERINE VARGAS, Shield No.27374, SERGEANT
FRANCISCO LOPEZ, Shield No. 1161, and POLICE
OFFICER ALEXANDRA MOJICA, Shield No. 04272;
and POLICE OFFICERS JOHN DOES # 1-4 (names and
number of whom are unknown at present), and other
unidentified members of the New York City Police
Department,

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 11, 2016

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
P.O. Catherine Vargas, Shield No. 27374, 28th Pct., 2271-89 8th Ave., NY, NY 10027
Sgt. Francisco Lopez, Shield No. 1161, 28th Precinct, 2271-89 8th Ave., NY, NY 10027
P.O. Alexandra Mojica, Shield No. 04272, 28th Pct., 2271-89 8th Avenue, NY, NY 10027

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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TIMOTHY HARRIS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
CATHERINE VARGAS, Shield No.27374, SERGEANT
FRANCISCO LOPEZ, Shield No. 1161, and POLICE
OFFICER ALEXANDRA MOJICA, Shield No. 04272;
and POLICE OFFICERS JOHN DOES # 1-4 (names and
number of whom are unknown at present), and other
unidentified members of the New York City Police
Department,

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff TIMOTHY HARRIS, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On October 13, 2014, at approximately 3:40 p.m., plaintiff Timothy Harris, while lawfully present in the vicinity of 67 Saint Nicholas Avenue, New York, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Additionally, plaintiff was assaulted, battered, and subjected to the use of excessive force by the defendant police officers when they handcuffed plaintiff in an excessively tight manner and refused to loosen the handcuffs, causing severe injury to plaintiff's wrists. Thereafter, plaintiff was maliciously prosecuted and denied the right to a fair trial in New York County Criminal Court until all criminal charges brought against plaintiff were dismissed on or about October 9, 2015. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, denied plaintiff the right to due process and used excessive force against plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff TIMOTHY HARRIS is a resident of the state of New York.

3. POLICE OFFICER CATHERINE VARGAS, Shield No.27374, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER CATHERINE VARGAS, Shield No.27374, is and was at all times relevant herein, assigned to the 28th Precinct.

5. POLICE OFFICER CATHERINE VARGAS, Shield No.27374, is being sued in her individual and official capacity.

6. SERGEANT FRANCISCO LOPEZ, Shield No. 1161, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT FRANCISCO LOPEZ, Shield No. 1161, is and was at all times relevant herein, assigned to the 28th Precinct.

8. SERGEANT FRANCISCO LOPEZ, Shield No. 1161, is being sued in his individual and official capacity.

9. POLICE OFFICER ALEXANDRA MOJICA, Shield No. 04272, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. POLICE OFFICER ALEXANDRA MOJICA, Shield No. 04272, is and was at all times relevant herein, assigned to the 28th Precinct.

11. POLICE OFFICER ALEXANDRA MOJICA, Shield No. 04272, is being sued in her individual and official capacity.

12. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does #1-4 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New

York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK on October 31, 2014 and a Supplemental Notice of Claim against the CITY OF NEW YORK on October 26, 2015, in compliance with the Municipal Law Section 50 and in accordance with New York State law.

17. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H.

18. More than thirty (30) days have elapsed since service of said Notices of Claim were filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. On October 13, 2014, at approximately 2:00 p.m. plaintiff, an African American male, was unlawfully stopped, questioned, frisked, searched, seized, handcuffed, assaulted, battered, subjected to excessive force, subjected to civil rights violations, falsely arrested and falsely imprisoned, maliciously prosecuted, and denied the Fifth Amendment Right to Due Process, without reasonable suspicion, probable cause or legal justification, by the individually named police officer defendants.

22. Specifically, on October 13, 2014, at approximately 2:00 p.m., plaintiff was lawfully standing in the vicinity of 67 Saint Nicholas Ave, New York, New York, when the individually named defendant police officers stopped the unmarked police car that they were driving, exited their vehicle and proceeded to unlawfully approach, stop, question, frisk, and search plaintiff.

23. The defendant police officers unlawfully demanded that plaintiff produce identification to them.

24. Plaintiff produced a lawful government identification to the defendant officers.

25. Upon seeing plaintiff's New York State Benefit's Card, defendant Sergeant Francisco Lopez immediately ordered the other defendant officers to "take him down."

26. Plaintiff asked the officers what crime they believed he committed, as he had not committed any crime, nor did he have an objective reason to believe he committed a crime.

27. The defendant officers then proceeded to unlawfully handcuff plaintiff.

28. The defendant officers tightened the handcuffs in an unreasonable and excessively tight and painful manner.

29. Plaintiff told the defendant police officers that his wrists were in pain from the tight handcuffs, and plaintiff asked the officers to loosen the handcuffs.

30. The officers refused to loosen the handcuffs.

31. Three additional defendant "John Doe" police officers arrived at the scene and proceeded to slam plaintiff on top of a car, without cause or legal justification.

32. Plaintiff was falsely arrested and imprisoned by the defendant police officers.

33. Plaintiff was transported by the defendant police officers to the 28th Precinct, against his will, where an unlawful search was conducted of plaintiff's person.

34. Plaintiff asked for medical attention because he was in pain from the excessively rough manner in which the officers treated him and from the excessively tight handcuffs.

35. EMS responded to the 28th Precinct and determined that plaintiff's injuries required treatment at a hospital.

36. The defendant officers placed shackles on plaintiff's legs, and did not remove the tight handcuffs from plaintiff's wrists for transport to the hospital.

37. Plaintiff was transported by EMS to Mt. Sinai St. Lukes Hospital.

38. Plaintiff requested that X-rays be taken of his wrist at the hospital, but the doctor at Mt. Sinai St. Lukes Hospital declined to take X-rays of plaintiff's wrist.

39. After plaintiff was treated at the hospital he was transported back to the 28th Precinct where he was detained in a holding cell for several hours.

40. Thereafter, he was transported to Central Booking whereat plaintiff was unlawfully detained until approximately 3:00 p.m. on October 14, 2014 at which time plaintiff was arraigned in New York County Criminal Court and released on his own recognizance.

41. The police officers maliciously initiated the prosecution against plaintiff by providing the DA's Office with false, misleading, and incomplete information regarding the facts that formed the officers basis for arresting plaintiff.

42. Upon his release from the courthouse at arraignment, plaintiff sought immediate medical attention for the injuries to his wrist and body caused by the officers' unlawful conduct.

43. After x-rays were taken of plaintiff's wrist, he was diagnosed with a broken bone in his wrist and was placed in a cast for 6-8 weeks.

44. After the New York City Police Officers falsely arrested plaintiff Timothy Harris, on October 13, 2014, they charged plaintiff with crimes they had no basis to allege he committed and maliciously prosecuted him.

45. The criminal prosecution of plaintiff was maliciously initiated without probable cause by New York City Police Officers, on October 13 2014, when the police officers forwarded false, misleading, and/or incomplete information and/or evidence to the New York County District Attorney's Office as an explanation for why they allegedly had probable cause to arrest and prosecute plaintiff.

46. At no time did the police officers have any legal justification or probable cause to believe plaintiff had committed any crime.

47. Notably, at no time did the police recover any drugs, guns, or contraband of any kind from plaintiff's person.

48. Nevertheless, plaintiff was handcuffed and falsely placed under arrest.

49. Further, the NYPD officers signed and executed a criminal court complaint that contained false, misleading and incomplete information and/or evidence under oath and under the risk of a penalty of perjury.

50. Thereafter the prosecution was maliciously continued by said police officers without probable cause until it was dismissed on or about October 9, 2015, when the criminal prosecution against plaintiff terminated in his favor.

51. As a result of the malicious prosecution against plaintiff, plaintiff experienced physical, personal, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, and humiliation.

52. Additionally, as a result of the malicious prosecution against plaintiff, plaintiff was forced make numerous Court appearances before the false charges against him were dismissed.

53. Plaintiff was falsely arrested and subjected to assault, battery, excessive force, and malicious prosecution by the officers.

54. At no time did the officers have probable cause or any legal justification to allege plaintiff committed a crime, nor did they possess any objective facts to indicate plaintiff committed a crime.

55. Some of the individually named police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, unlawful strip search, assault, battery, and use of excessive force against plaintiff.

56. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, denial of the right to due process, assault, battery and use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain serious physical, psychological and emotional trauma, including a broken bone in plaintiff's wrist.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

58. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, and frisked, unlawfully seized, unlawfully searched, , falsely arrested, falsely imprisoned, and maliciously prosecuted, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

59. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

62. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

68. The conduct of defendants in stopping, frisking, and searching plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

69. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

72. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

75. Defendants lacked probable cause to search plaintiff.

76. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

78. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

79. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

80. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

82. Defendants commenced and continued a criminal proceeding against plaintiff.

83. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

84. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

85. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

87. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

88. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

89. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. The use of excessive force by defendants by handcuffing plaintiff in an excessively tight manner and refusing to loosen the handcuffs and by using unreasonable force throughout the course of plaintiff's arrest is an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

91. Additionally, placing plaintiff in handcuffs and iron leg shackles to be transported via ambulance for medical treatment at Mt. Sinai St. Lukes Hospital was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

92. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

93. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SEVENTH CAUSE OF ACTION

Assault

94. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 93 with the same force and effect as if more fully set forth at length herein.

95. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the plaintiff.

96. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

97. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

98. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

99. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Battery

100. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 99 with the same force and effect as if more fully set forth at length herein.

101. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a

hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

102. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

103. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

104. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

105. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Negligence

106. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 105 with the same force and effect as if more fully set forth at length herein.

107. Defendants owed a duty of care to plaintiff.

108. To the extent defendants claim that plaintiff's physical injuries were not caused by the defendants during the course of plaintiff's arrest, and instead were accidentally caused by defendants either before or after they arrested plaintiff then defendants breached that duty of care by causing plaintiff to suffer physical injuries as a result of defendants careless, reckless, negligent, and/or accidental behavior.

109. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

110. All of the foregoing occurred without any fault or provocation by plaintiff.

111. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

112. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

113. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

114. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 113 with the same force and effect as if more fully set forth at length herein.

115. By forcing plaintiff to be transported from the 28th Precinct to Mount Sinai St. Lukes Hospital for medical treatment in handcuffs and iron leg shackles, without any basis for placing plaintiff in such severe restraints and by arresting plaintiff in a public manner in front of his friends and colleagues, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Timothy Harris.

116. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

117. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

118. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

119. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

120. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Intentional Infliction of Emotional Distress

121. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 120 with the same force and effect as if more fully set forth at length herein.

122. By forcing plaintiff to be transported from the 28th Precinct to Mount Sinai St. Lukes Hospital for medical treatment in handcuffs and iron leg shackles, without any basis for placing plaintiff in such severe restraints and by arresting plaintiff in a public manner in front of his friends and colleagues, defendants, each acting individually and in concert with each

other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Timothy Harris.

123. Defendants' conduct was intentional, wanton and reckless and was done with a total disregard of the risks to plaintiff's health and safety.

124. As a direct and proximate result of the acts alleged above, plaintiff suffered severe emotional distress, humiliation, mental anguish, and physical distress.

125. The acts of defendants alleged above were willful, wanton, flagrant, malicious, oppressive, and performed with a total disregard for plaintiff's health safety and welfare, and justify the award of punitive damages.

126. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

127. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

128. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

129. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELVTH CAUSE OF ACTION

Denial of Right to Fair Trial

130. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 129 with the same force and effect as if more fully set forth at length herein

131. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

132. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

133. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

134. In withholding/creating false evidence against plaintiff Bernard Miller, and in providing/withholding information with respect thereto, defendants violated plaintiff's

constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

135. As a result of the foregoing, plaintiff Bernard Miller, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

136. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

137. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

138. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRTEENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

139. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 138 with the same force and effect as if more fully set forth at length herein.

140. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

141. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTEENTH CAUSE OF ACTION

Failure to Intervene

142. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 141 with the same force and effect as if more fully set forth at length herein.

143. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

145. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

147. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

149. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

150. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

WHEREFORE, plaintiff Timothy Harris demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 11, 2016

/s/
STUART E. JACOBS